

**David M. Paciocco, “Understanding the Accusatorial System”,
(2010) 14 Can. Crim. L. Rev. 307 (excerpts; endnotes omitted)**

1. INTRODUCTION

The place to begin understanding the adversarial system is by identifying how the adversarial trial process differs from typical inquisitorial procedures. Of course adversarial systems vary internationally just as inquisitorial systems do. Still, it is possible to identify basic characteristics to illustrate the core differences between the two kinds of criminal processes. Specifically, there are three central points of departure. [...]

2. THE BASIC DIFFERENCES EXPLORED

As indicated, there are three central points of departure between a typical inquisitorial model and the generic adversarial model. Each of these core differences will be explored in turn.

(a) The Integration Between the Investigative, Prosecutorial, and Decision-making Functions Differ Significantly Between the Two Systems

[...] In stark contrast [with inquisitorial systems,] adversarial systems, including the Canadian criminal justice system, tend to emphasize the separation of the investigative, prosecutorial, and adjudicative functions. Although some adversarial systems, including in the United States of America, have their prosecutors direct police investigations, in most adversarial systems police investigations are conducted by independent police officers and prosecuted by independent prosecutors. For example, Canadian prosecutors may provide legal advice to peace officers, but they do not direct peace officers what to investigate. Beyond identifying gaps in a case and requesting further information Canadian prosecutors typically do not even participate in decisions about how to investigate. The investigative file is therefore prepared by the police independently of the prosecutor and the police form no notional or actual part of the court or tribunal, or even of the prosecutor’s office. As a result the original police investigation file forms no part of the court record in an adversarial system. The independence of the police is seen as a way of ensuring their tasks will not be politically directed or influenced by executive state officials.

The police will assemble a prosecutorial file from their investigation, which is provided to the prosecutor when the police lay a charge. The prosecution file is not an official document of the court or tribunal any more than the investigative file is. Prosecutors use the file to determine whether to proceed with the charges; the independent prosecutor is free to refuse to do so regardless of the wishes of the police. In most cases charges laid by the police are in fact prosecuted and prosecutors use the file the police have prepared for them to organize the case they are going to present during the trial. The prosecution file itself is not given to the adjudicators during the trial. Instead the prosecutor will select from the file the information that it wants the adjudicator to know. It will then present this information not by filing documents contained in the file but by calling at the hearing as witnesses those individuals who gave the relevant information to the police. It is the evidence that is presented by prosecutors in open court in this way along with the evidence presented by the defence that will ultimately constitute the information on which the adjudicators will decide the case.

Nor do prosecutors in an adversarial system perform formal adjudicate functions. They do not conduct hearings nor do they make formal decisions about the status of cases. Prosecutors make informal decisions whether to prosecute and how to prosecute, decisions that are supposed to be made in the interests of justice. Only in this sense -- that prosecutors are required to consider the interests of the accused as well as the interests of the public and the victim -- are prosecutors considered to be ministers of justice. Still, they are not part of the court or tribunal that will adjudicate the case. They are to have complete independence from the courts they prosecute within.

In an adversarial system the judges and juries who adjudicate or decide cases are, in turn, entirely independent of the prosecutors. Other than formal pre-trial filings done in the administration of the trial process (such as notices and written arguments by the parties on procedural matters that are shared with trial judges) the judges and juries who will adjudicate the case do not receive information from the prosecutors in advance of the actual trial hearing. Nor do they review the investigative file. [...] [T]he central role of an adversarial system judge in a judge alone trial, or in a judge and jury trial, is to function as an impartial adjudicator. [...]

The accused will participate heavily as a main participant in the adjudicative process but will generally not be involved in any way in the investigative process. The participation of the accused at the trial will ordinarily be done with the assistance of a lawyer.

(b) The Function of the Trial Differs Significantly Between the Two Systems

Truth and justice are obviously aligned in any legal system; an untrue verdict is unlikely to satisfy the sense of justice of most observers. The way truth is pursued tends to differ, however, as between inquisitorial and adversarial systems. [...]

The way that truth is pursued in an adversarial system is more nuanced. As with inquisitorial systems, impartial investigators are expected to search for evidence in the interests of finding the truth regardless of who it favours. Similarly, adversarial system prosecutors are expected to exercise their prosecutorial authority in a fair and balanced way in the interests of truth and justice. Adversarial theory departs sharply from the inquisitorial model, however, when it comes to the role of the adjudicator. Essentially, the adversarial adjudicator is not to seek out the truth. As described above, the adjudicator's role is to decide whether the prosecutor has proved the specific allegation it has made beyond a reasonable doubt. This is not to say that truth is unimportant. As will be explained, it is believed that the truth will be discovered to the extent it can be consistently with the liberty interests of accused persons by obliging the judge to answer the narrower question of whether the prosecutor has proved the allegation made.

This limited role of the adjudicator in pursuing truth in an adversarial system is required by adversarial theory. First there is the concept of liberty that operated in England, when the adversarial system was born. According to that concept, which still prevails in countries having an adversarial tradition, great weight is given to the idea that individuals are entitled to be left alone by the State unless and until the State justifies removing their liberty by proving that they committed an offence against the State. If the State wishes to deprive the accused of their liberty the State must therefore make a formal allegation and prove it. Consequently the State bears the burden of proving the guilt of the accused to a high standard. These ideas -- that a crime is an offence against the State and that the State must prove guilt in order to punish someone for a crime -- support a limited role for the adversarial system decision-maker; if the appearance of fairness and impartiality is to be assured the decision-maker who judges the allegation made and prosecuted by the State cannot be an organ of the same branch of government that is prosecuting the subject. An adversarial judge is therefore entirely independent of the prosecutorial arm of the State and cannot join the prosecutor in proving the allegation. The adjudicator is there to test the sufficiency of the State allegation, not to inquire into what happened.

Notwithstanding this, some argue that the adversarial system arrives at the truth as efficiently as inquisitorial systems do. They argue that this happens, paradoxically, precisely because the adjudicator is prevented from searching actively for the truth. They contend that it is the parties who are interested in the outcome and will therefore be highly motivated to discover evidence that supports their respective positions. The parties are therefore apt to uncover more information than a state agent would in the ordinary

conduct of business. The interested parties will also search hard for the arguments and laws that support their position, ensuring that no consideration is missed. They will also bring a hyper-critical eye to the evidence offered by the opposing party, which may serve to expose the opposing party's evidence as inaccurate or unreliable. In short, the vigilant pursuit of competing interests can produce better evidence and reveal the true strength of the available information. Meanwhile the adjudicator has avoided the dust of the conflict. The independent adjudicator can therefore look beyond the self-interest of the parties and make the ultimate determination, uninfluenced by interest or predisposition.

However efficient adversarial systems may be in uncovering the truth it remains true that they are not concerned solely with the truth. As will be seen, in the interest of controlling abuse of state power and of protecting the liberty of suspects, adversarial systems tend to embrace principles that can actually impede the search for the truth. An important exception exists with respect to wrongful convictions. If a factual mistake is made in finding someone guilty, this is considered to be a significant failing in the adversarial trial.

The notion that the adjudicator's role is limited to determining whether the prosecutor has proved its case has important implications for the conduct of adversarial trials. First, it is for this reason that the adversarial adjudicator generally does not seek out documents or witnesses, even if the adjudicator believes that those documents or witnesses will yield a better understanding of what happened. With rare exception an accusatorial adjudicator decides the case solely on the evidence presented by the parties. Second, the concept of there being a burden of proof on the prosecutor, although found in many inquisitorial systems, takes on greater dimension in an adversarial trial [...]. Third, the notion that the role of the adjudicator in an adversarial system is to determine whether the prosecutor has proved its case makes it necessary to conduct a contained hearing where the evidence that is going to be relied upon can be presented by the prosecutor and subjected to adversarial scrutiny. The tradition of imposing checks and balances on adversarial participants to prevent abuses requires, in turn, that this information be presented by the prosecutor and the defence at an open and public hearing. This means that evidence is presented only in a courtroom accessible to the public and not behind closed doors.

(c) The Nature and Extent of Access to Information by Decision-makers Tends to Differ in Inquisitorial and Adversarial Systems

[...] As indicated, adjudicators in an adversarial system do not have access to investigative files. For reasons explained, the evidence that will be relied upon to make a decision is presented during open, public hearings (known as trials) by the parties.

Consistent with adversarial theory those parties are permitted at the trials to challenge the accuracy and propriety of the information supplied by their adversary. [...]

[A]dversarial adjudicators tend to rely on live, oral testimony. This is believed in adversarial systems to be the best way to ensure that the court record is reliable. Witnesses, whether giving depositions to prosecutors in an inquisitorial system or testifying in court, do not always get things right. It is believed in adversarial systems that cross-examination -- confrontational questioning by the opposing lawyer -- is the best way to expose problems with the evidence.

[T]he fact that the parties are present when the evidence is presented to the adjudicator has enabled the development in adversarial systems of an intricate law of evidence that can prevent decision-makers from considering information that experience has shown to be problematic. The presence of the parties at the hearing where the evidentiary record is being assembled makes it possible to keep undesirable information from entering that record. Examples of undesirable information include irrelevant or unimportant information, hearsay evidence, a good deal of character evidence, and some opinion evidence. Other evidence is “excluded” from consideration in order to protect important confidences or to respect rights that have been afforded to individuals. The parties in an adversarial system can object and argue over the “admissibility” of such proof. [...]

3. THE HISTORICAL ORIGINS EXAMINED

[T]o truly understand the “accusatorial system” it is necessary to understand how that system developed. Although accusatorial system doctrines have evolved over time, the origins of the accusatorial system can be found in revulsion to the practices of the Court of Star Chamber and the Courts of High Commission as they operated in England in the 17th century by the Stuart Kings. These courts were used not to achieve justice but were employed instead as vehicles for repressing dissent, and their procedures reflected it. Judges would order the arrest and detention of suspected enemies of the State. Those suspects would have no right to representation. These Courts, which under the Tudor monarchs conducted their hearings in public, operated behind closed doors during the Stuart era. Their hearings would amount to interrogations. Suspects would be coerced into co-operating by being forced to swear an oath to God. Historians believe that the oath was a powerful incentive, even to make admissions against interest, since most believed that they would be condemned to eternal damnation were they to lie after promising God to be truthful. The interrogation would not be confined to specific allegations. It would be wide-ranging and would include not only the acts the suspects may have engaged in but their beliefs as well. The judges would then determine whether

the thoughts suspects admitted to having were either “blasphemous” or “seditious”; two crimes that were so vaguely defined as to enable the judges to find guilt on almost any admission. In this way, enemies of the state could be exposed and punished.

4. THE ADVERSARIAL PRINCIPLES

The principles that now serve as the structure for the adversarial system trial procedure were created to eliminate the offensive features of the practices of the Court of Star Chamber and the Courts of High Commission. Those key principles can be easily listed and economically explained. They include:

- the principle of a specific allegation
- the principle against conscription (including the right to silence)
- the principle of prosecutorial independence
- the principle of judicial independence and impartiality
- the open court principle
- the presumption of innocence
- the principle of full answer and defence

(a) The Requirement of a Specific Allegation

It has been argued that the most important feature of the adversarial system in repelling the kind of abuse these disgraced courts engaged in is the requirement that the State commence the trial process by making a specific allegation against the accused. [...]

Paradoxically, the tradition in adversarial systems is to describe the specific allegation briefly, in much less detail than is found in the typical charging document in inquisitorial systems. Accusatorial-charging documents do not describe the criminal event in any detail. They tend to list only the location, time, and the general criminal allegation. The brief form of allegation in an adversarial system is attributable to the fact that the charges are not formally approved by an organ of the court or tribunal in an adversarial system the way they tend to be in inquisitorial systems. This means that there is no pre-charge vetting by a judicial official of the evidence in the case, upon which to craft a more detailed charging document. [...]

(b) The Principle Against Self-Incrimination

The framers of the adversarial system were offended by the Star Chamber practice of forcing the suspect to be his own accuser. This was considered to be offensive on a number of fronts. Compelling the accused to participate in the investigation offends the notion that the State should not interfere with individual liberty unless and until the State proved that the accused committed an offence. Individuals also have interests separate from the State, and it was seen as an indignity for the State to compel a suspect to betray himself. [...] In order to prevent such mischief, adversarial systems tend to have a variety of rules designed to prevent the State from compelling the accused person to betray himself. Canada has an intricate network of such rules, including:

[...]

- no accused person can be forced to testify at their trial, and their failure to do so cannot be considered to be evidence of guilt. If an accused person does choose to testify at their trial they must answer all relevant and legally permissible questions.

(c) The Principle of Prosecutorial Independence

Prosecutors are members of the executive branch of government. There is a head prosecutor in each jurisdiction, either an attorney-general or a director of prosecution depending on the Canadian jurisdiction. Those who prosecute individual cases are under the direction of that head prosecutor but the independence of the prosecutorial office as a whole is jealously guarded. Most importantly, the prosecutor is entirely separate in role and composition from the court. Moreover, courts will not interfere with the way prosecutors exercise their “core discretions” whether to prosecute charges laid by the police or to discontinue prosecutions. The court’s role is to adjudicate the charges that are proceeded with on their merits, not to approve prosecutorial decisions about what charges to bring.

Prosecutors work in an adversarial system but the rules of ethics are intended to keep prosecutors from acting as pure adversaries. They are considered to function as “ministers of justice” in the sense that they are expected to wield their considerable power in the public interest, including the interest of the accused. They are not supposed to act for the sake of winning the contest but for the sake of justice.

(d) The Principle of Judicial Independence and Impartiality

Judges must be entirely independent of the executive and legislative branches of government. They are appointed by elected officials but once they have been appointed they take no direction from those who appointed them or from any other officials. Efforts are made even to prevent the spectre of influence through such measures as independent salary commissions to avoid the appearance that the government can use its control over the judicial budget to punish judges into supporting state positions.

Judges must also be impartial between the State and the accused, and even the appearance of partiality will cause decisions to be overturned. In Canada the *Charter* guarantees the right to a fair and impartial trial. [...]

Juries, too, must be independent. They are not called upon to give reasons for their decision, and individual jurors from serving on juries will be disqualified if there is a probability that they will be partial.

(e) The Open Court Principle

In adversarial systems trials must be conducted publicly. This means that, with rare exception, the public must be allowed to attend the proceedings where the accused pleads and where the evidence is led and the arguments are made. Judges and juries are free to take the information they received in open court and deliberate or prepare their decision in private but the law requires that the decision be based solely on information presented in open court.

The open court principle is supported by the freedom of the press to report to the public at large what has transpired in court. With rare exception, everything can be published. This is believed to enhance the integrity of decisions, since the public will be watching. It also permits the public to be acquainted with the way the judicial system operates, which enhances the democratic process by facilitating law reform.

(f) The Presumption of Innocence

The “presumption of innocence” is premised on the notion that a State, respectful of the integrity of its citizens, will give its citizens benefit of the doubt. It will assume that they have not violated the law and that individuals are entitled to liberty until the contrary is proven. [...] In Canada the presumption of innocence plays three roles. First, it is the principle that assigns the burden of proof to the State, in particular, to the prosecution

arm of the State. This is important not only because doing so requires the prosecution to present its evidence first. The crucial point is that innocence is the default position. An accused will be found not guilty and treated as if they are innocent in the eyes of the law unless the prosecution succeeds. Second, the presumption of innocence is the principle that requires the high standard of proof before conviction that operates in adversarial systems: proof beyond a reasonable doubt. Although this standard is described differently by the jurisprudence of different adversarial systems, in the Canadian system it means that a conviction cannot be entered even if the evidence shows that the accused is probably guilty; he is to be treated as innocent in spite of this unless the evidence removes all realistic doubt about his guilt. Guilt does not have to be certain for a conviction, but proof beyond a reasonable doubt is much closer to certainty than it is to probability. Third, the presumption of innocence supports the “principle of a case to meet.” This principle requires the trial judge to end a prosecution, on a defence application, if after the Crown’s case there is an omission in the evidence that would prevent a reasonable judge or jury from convicting. The accused will not even be called upon to answer as there is no case to meet. Similarly, for most serious offences there is often a preliminary hearing to see if the Crown can meet this threshold before a Court will permit the charge to go through to trial.

The presumption of innocence is applied pragmatically in an adversarial system. Neither it nor the principle of a case to meet prevents the arrest of individuals before their guilt is proven. Nor do these principles prevent individuals who have been charged from being detained in custody or put on restrictive bail conditions. [...] The presumption of innocence therefore tends to do its real work in the trial court where the quality of the case can be scrutinized by an impartial judicial officer.

(g) The Principle of Full Answer and Defence

Accused persons have the right to defend themselves. That right is secured by the principle of full answer and defence, a diffuse but important principle that supports a variety of rules and practices. In Canada the principle of full answer and defence requires the prosecutor to disclose to the accused all non-privileged information in the prosecution *and* investigation file, other than information that is clearly irrelevant. In practice this is done by copying the file and delivering it to the accused on request. The principle of full answer and defence also ensures that the accused has a broad right to cross-examine witnesses and to present evidence in defence of the charges. Moreover, it has caused the rules of evidence to work more generously in favour of the accused than they do for prosecutors; courts are supposed to be more prepared to exclude evidence the prosecutor needs for the prosecution than evidence the accused requires for their defence.

5. THE CANADIAN CRIMINAL TRIAL

Together those principles give structure to the Canadian adversarial trial. It works as follows:

The trial process begins with a charge being laid. Anyone can lay a charge but this is typically done by the police. To be valid the charge must make a specific allegation that the person accused has committed an offence contrary to an existing statutory offence. The charging document and the person accused are ultimately brought before a trial court composed of a trial judge (a “judge-alone trial”) or occasionally before a court composed of a trial judge and a jury of twelve ordinary citizens (a “jury trial”). Whether it is a judge-alone trial or a jury trial, the court will derive its jurisdiction to try the case only from the specific allegation made in the charging document. That is all the Court adjudicates: the specific offence charged. The court cannot make findings of guilt or innocence on charges that have not been laid. Moreover, the trial is exclusively a criminal trial. The Court has no jurisdiction to settle civil disputes between the accused and the victim. Their dispute is a private matter for another day in another court. As all crimes are considered to be offences against the State because they offend the broad public interest, the victim is not even considered to be a party to the criminal trial. A crime offends the State and so the prosecuting party is the State. In Canada those prosecutions are brought in the name of the nominal head of the state, Her Majesty the Queen, hence Canadian prosecutions are brought by the “Crown” and carried by a Crown attorney.

[...] The trial begins when the specific allegation or charge is read to the accused, who pleads guilty or not guilty. If the accused pleads guilty, the allegation is admitted and a trial will not be required; since the proceedings are adversarial an admission of the crime by the party charged is taken as a waiver of the need for the Crown to present proof. The Crown will simply read into the record a description of the criminal event, and this is what the conviction will be based upon.

If the accused pleads “not guilty”, the guilt phase of the trial, begins. A single trial judge presides over the process whether it is a judge alone trial or a jury trial. In both judge alone trials and jury trials the trial judge manages the process and makes necessary legal decisions, performing the function of a “trier of law.” In a judge-alone trial the judge must also make factual findings and render a holding, acting as a “trier of fact” in doing so. In a jury trial it is the jury who acts as the trier of fact.

In the exercise of the “trier of law” function, once all preliminary matters are dealt with the trial judge will begin the hearing by calling upon the Crown attorney to present its case. The Crown attorney is called upon to present its case first because the Crown attorney has the burden of proving the specific allegation that has been made. As indicated the standard of proof is high. To succeed with the prosecution the Crown attorney must prove the specific allegation beyond a reasonable doubt.

If a judge-alone trial involves a complicated set of facts, the Crown attorney will begin by making an opening statement. In a jury trial, the Crown attorney will always make an opening statement, regardless of the complexity of the case. What is said in an opening statement cannot be treated as evidence or proof by the adjudicator. The purpose in making an opening statement is to outline the overall allegation so that the trier of fact can follow and understand the significance of the evidence, which will come out piecemeal during the trial.

At the outset of the guilt phase of the trial, the parties may agree that certain facts are true. These “formal admissions” save the parties from having to prove the things that have been admitted. Then the Crown attorney will gradually present the information it will rely upon by calling witnesses who will present the evidence. The evidence called by the Crown must comply with the technical rules of evidence. The law of evidence permits most information to be admitted, but does exclude some kinds of information as inadmissible. To say that evidence is “inadmissible” does not describe whether the trier of fact accepts it as reliable or true; evidence is “admissible” when the law permits the trier of fact to consider it, and evidence is “inadmissible” when the law prevents the trier of fact from doing so.

Witnesses are called forward to the witness stand one at a time by the Crown attorney to present their admissible evidence. Ordinarily when a witness is testifying the other witnesses, apart from the person accused, will be asked to leave the courtroom.

Most evidence presented will be in the form of oral testimony in which the witnesses describe their relevant knowledge. This takes place when the Crown attorney conducts what is known in Canada as an “examination in chief” in which the oral testimony and any items of physical evidence to be produced by the testifying witness will be presented. It is important to appreciate that the oral testimony of a witness will be extracted under the direction of the Crown attorney who poses specific questions; witnesses are not invited to speak freely about their observations. In other words, witnesses are not invited to tell their stories before questions begin, as is common in inquisitorial systems. The entire testimony of the witness is structured and constrained by specific questions. This is so that the party who calls the witness can make tactical choices as an adversary about

what facts to prove, and so that witnesses will not inadvertently stray into areas off limits under the rules of evidence.

In Canada and most adversarial systems the questions asked during examination-in-chief cannot be “leading.” In other words, it is generally inappropriate for a party who has called a witness to suggest answers to the witness or to refer in questions to contested facts that have not been testified to by the witness. Information is meant to be gathered by asking “who, what, when, where, how, and why” questions, or by simply asking the witness to elaborate on a point the witness has already made.

When the Crown attorney has in this way presented all of the evidence it wishes from a witness the accused is immediately invited to “cross-examine” the witness. Cross-examination is used in Canada to challenge the accuracy or reliability of the testimony that has been given during the “examination in chief” and to extract relevant evidence from the witness that the Crown attorney did not secure in its questioning. During cross-examination it is permissible to lead the witness by suggesting answers to them. Indeed, tactically this is the preferred method of cross-examination. It is believed that a witness called by one party will generally refuse to accept inaccurate suggestions made by opposing counsel. More importantly, leading is the most effective way of exposing legitimate problems of sincerity or reliability. It is also the most effective way to qualify testimony, given that witnesses may otherwise be reluctant to volunteer the problems with or admit to the limits of their own testimony. Skilled cross-examiners employ a careful strategy in which they gradually get the witness to commit to so many suggestions that the witness cannot then reasonably deny the ultimate suggestion that the cross-examiner will make. Since it often involves the use of traps that can be wielded by clever counsel cross-examination may strike some as manipulative, but the adversarial process is premised on the belief that if the testimony of a witness will not stand up to the challenge of cross-examination that testimony should not be relied upon. On the other hand, if the witness defends their testimony against an effective cross-examination the reliability of that testimony can be more confidently accepted.

When the accused has finished the “cross-examination” the Crown attorney will be permitted to ask questions on any new matters that arose during cross-examination that could not have been anticipated during the examination in chief, or on matters that are defined as appropriate by the rules of evidence. These questions are not to be leading. The Crown attorney will continue calling witnesses and the same process just described will be repeated for each witness until the Crown attorney case has been presented. At this point the Crown attorney will close its case.

After the Crown attorney has closed its case there are some prosecutions where the accused will ask the trial judge to end the trial and find the accused not guilty on the basis that the Crown attorney has not succeeded in presenting a sufficient case to even warrant a response. This is an application of the principle of a “case to meet” described above. These kinds of applications occur only rarely since they succeed only if, on its face, the prosecution case failed to offer proof on an essential element of the offence charged.

Ordinarily then, the trial judge will invite the accused to present its case. In many if not most cases the accused will elect not to present a case. Instead the accused will defend the prosecution by arguing that the Crown attorney’s case is not sufficient or credible or reliable enough to discharge the Crown attorney’s burden of proving the charge that was laid. The accused will argue that its challenge to the witnesses during cross-examination have revealed the prosecution case to be too weak to warrant a conviction.

If the accused does choose to present evidence, the same procedure described above (possible opening statement, “examination-in-chief,” “cross-examination,” and “re-examination” of witnesses) is followed until the accused has led all of the evidence it wishes. The accused, too, is bound by the rules of evidence, although, in the interests of ensuring that the defence is heard the law of evidence tends to be more generous with the admission of defence evidence than prosecutorial evidence.

The parties will then present closing arguments. In a court composed of a trial judge alone, this ends the guilt phase of the trial. The trial judge will render a decision, either then or at a later date based solely on the evidence presented by the parties. The trial judge will assess the evidence that has been presented to see if it is credible, reliable and sufficient to sustain a conviction. In a court composed of a judge and jury, before the jury begins deliberating the trial judge must first direct the jury on the legal rules the jury is to apply in its reasoning, and then the jury will retire to deliberate. The jury will go into a jury room and remain together until a verdict is rendered. The jury will arrive at its verdict in private, and without the participation of the trial judge.

If the accused is acquitted (found not guilty) the trial ends. If the accused is convicted the sentencing phase of the trial begins. If it has been a jury trial, the jury is “discharged” or released, as their assigned task as finders of fact during the guilt phase of the trial has been completed.

During that sentencing phase the Crown attorney will make arguments on an appropriate sentencing, making reference to those facts that should assist the trial judge. The Crown attorney is free at this point to refer to facts that have not been proved formally in evidence, such as information about the past misconduct of the accused person that may

be relevant in deciding what the goals of the sentence should be. If the accused contests any facts referred to by the Crown attorney that were not proved during the guilt phase, the Crown attorney will be required to prove those facts beyond a reasonable doubt, or they cannot be used during the sentencing. When the Crown attorney has completed its submission on sentence, the accused is permitted to make competing submission. Again the accused is free to refer to facts that have not been formally proved, such as employment status or good character information. If the Crown attorney contests any facts referred to by the accused, the accused will be required to prove those facts on the balance of probabilities or they cannot be used during the sentencing. Once the submissions are complete the trial judge decides upon the appropriate sentence, whether in a judge-alone trial or a trial by judge and jury.

6. CONCLUSION

The adversarial system is not perfect. It depends on relatively equal skill and resources between the parties, making the role and competence of defence counsel of cardinal importance. The system tends not to work well where accused persons are unrepresented. It is a confrontational process that does not appeal to those who prefer restorative processes in which the parties are encouraged to understand the positions of the opposing party and find accommodation. The adversarial system also compromises the search for the truth by granting rights to accused persons that can limit the factual accuracy of holdings. This is done to prevent abuse by state officials. The adversarial system nonetheless frequently produces convictions and when it does the truth of those findings of guilt will have been tested as effectively as they can be.